Final Action Agenda/Minutes are supplemented by audio and video recordings of the meetings, as well as transcripts. Video recordings of Village Council meetings from June 8, 2016 forward, as well agendas, staff reports, resolutions, ordinances, and other documents related to the meetings can be viewed online at https://estero-fl.gov/agendas/ at the corresponding meeting date.

APPROVED BY COUNCIL
FEBRUARY 19, 2020

FINAL ACTION AGENDA/MINUTES

VILLAGE COUNCIL MEETING

Village of Estero Council Chambers
9401 Corkscrew Palms Circle
Estero, FL 33928
February 5, 2020 9:30 a.m.

1. **CALL TO ORDER:** 9:30 a.m.

INVOCATION: Pastor Kevin Morris from Hope United Presbyterian Church.

PLEDGE OF ALLEGIANCE: Led by Mayor Ribble.

ROLL CALL: Present: Mayor Bill Ribble - District 1, Vice Mayor Katy Errington - District 4, Councilmember Howard Levitan - District 2, Councilmember Jon McLain - District 3, and Councilmember Nick Batos - District 6. Absent: Councilmember Jim Boesch - District 5 and Councilmember Jim Wilson - District 7 (excused absence).

Also present: Village Manager Steve Sarkozy, Assistant Village Attorney Matthew Roepstorff, Assistant to Village Manager Kyle Coleman, Public Works Director David Willems, Finance Director Lisa Roberson, Community Development Director Mary Gibbs, Stanley Knight, Code Compliance Manager Stanley Knight, and Village Clerk Kathy Hall.

Mayor Ribble spoke briefly regarding an open house/tour event that the Council attended at the Lee County Sheriff's Office new substation in Estero on Tuesday, February 4, 2020,

2. **APPROVAL OF AGENDA, ADDITIONS, AND DELETIONS:**

Motion: Move to approve the agenda as revised, pulling Agenda Item 6 (b) CN-2018-02 Miscellaneous Professional Services (Construction Engineering and Inspection Services for Estero Parkway Roadway and Landscape Improvements).

Motion by: Vice Mayor Errington
Seconded by: Councilmember Batos

Action: Approved the agenda as revised, pulling Agenda Item 6 (b) CN-2018-02 Miscellaneous Professional Services (Construction Engineering and Inspection Services for Estero Parkway Roadway and Landscape Improvements).

Vote: (Roll call vote)
Aye: Councilmembers Levitan, McLain, Batos, Wilson, Vice Mayor Errington, and Mayor Ribble
Nay:
Abstentions: Councilmembers Boesch and Wilson absent

3. PUBLIC COMMENT ON NON-AGENDA ITEMS

Nolen Rollins, Rookery Pointe, Estero Forever Foundation update.
Ed Weil, Rookery Pointe, invitation for Council to attend tonight's Estero High School girls' soccer game.
Jack Meeker, The Brooks, preservation of Edison Farms.

4. CONSENT AGENDA:

(a) January 22, 2020 Council Meeting Minutes

(b) January 29, 2020 Council Meeting Minutes

A motion to approve the Consent Agenda was made and duly passed.

5. CONSIDERATION OF ITEMS DEFERRED FROM CONSENT AGENDA:

6. ACTION ITEMS:

(a) Amendment Two to Contract No. EC 2017-28 (Agnoli, Barber & Brundage, Inc. Estero Parkway Contract)

Staff Presentation/Comments: Village Manager Sarkozy; Public Works Director Willems.

Council Questions or Comments: Mayor Ribble, Councilmembers Batos, Levitan, McLain and Vice Mayor Errington.

Public Comment: None.

Motion: Move to: (1) Approve Amendment Two to Contract EC 2017-28 increasing the total contract by $96,900 from $792,724 to a Not to Exceed amount $853,624. (2) Authorize the Village Manager to execute the amendment and any other ancillary documents on behalf of the Council.

Motion by: Councilmember McLain
Seconded by: Vice Mayor Errington

Action: (1) Approved Amendment Two to Contract EC 2017-28 increasing the total contract by $96,900 from $792,724 to a Not to Exceed amount $853,624.
(2) Authorized the Village Manager to execute the amendment and any other ancillary documents on behalf of the Council.

Vote: (Roll call vote)
Aye: Councilmembers Levitan, McLain, Batos, and Vice Mayor Errington
Nay: Mayor Ribble
Abstentions: Councilmembers Boesch and Wilson absent

(b) CN-2018-02 Miscellaneous Professional Services (Construction Engineering and Inspection Services for Estero Parkway Roadway and Landscape Improvements)

This agenda item was pulled from the agenda.

(c) Consider a Lien Mitigation Request from Wayne and Maxine Schneider Relating to Their Property at 20031 Seagrove Street #1408, Located in the Sabal Palms III Community of Grandezza, Building 14, Unit 1408

Staff Presentation/Comments: Code Compliance Manager Knight; Assistant Village Attorney Matthew Roepstorff.

Information presented by:
Jeff Wright, Attorney, Henderson, Franklin, Starnes and Holt, P.A.

Council Questions or Comments: Councilmember Levitan and Mayor Ribble.

Public Comment: None.

Motion: Move to reduce the fine to $0 but to charge the administrative costs of $201.20.

Motion by: Councilmember Levitan
Seconded by: Councilmember Batos

Action: Reduced the fine to $0 and charged the administrative costs of $201.20.

Vote: (Roll call vote)
Aye: Councilmembers Levitan, Batos, Vice Mayor Errington, and Mayor Ribble
Nay: Councilmember McLain
Abstentions: Councilmembers Boesch and Wilson absent

7. PUBLIC COMMENT ON NON-AGENDA ITEMS: None.

8. COUNCIL COMMUNICATIONS / FUTURE AGENDA ITEMS:

Councilmembers McLain, Batos, Vice Mayor Errington, and Mayor Ribble.

9. VILLAGE ATTORNEY'S REPORT: None.

10. VILLAGE MANAGER'S REPORT:
Village Manager Sarkozy provided an update regarding the recent Village acquisition of the Happehatchee Center property.

Adjourn Regular Session and Convene Workshop Item

11. WORKSHOP ITEMS:

(a) Williams Road West of US41 Update

Staff Presentation/Comments: Village Manager Sarkozy; Public Works Director Willems.

Information presented by:
Steve Neff, P.E., AIM Engineering & Surveying, Inc.
Daniel Schroeder, P.E., AIM Engineering & Surveying, Inc.

Council Questions or Comments: Councilmembers Levitan, McLain, Batos, Vice Mayor Errington, and Mayor Ribble.

Public Comment:
Gordon Brown, Pelican Sound
Roland Rothman, West Bay

The meeting went into recess at 10:55 a.m. and reconvened at 11:05 a.m.

(b) Budget and Capital Improvement Program (CIP) Introduction

Staff Presentation/Comments: Village Manager Sarkozy; Assistant to the Village Manager Coleman.

Council Questions or Comments: Mayor Ribble, Vice Mayor Errington, and Councilmembers Batos and Levitan.

A motion to adjourn was made and duly passed.

12. ADJOURNMENT: 11:36 a.m.

ATTEST:

By: Kathy Hall
Kathy Hall, MMC, Village Clerk

VILLAGE OF ESTERO, FLORIDA

By: Bill Ribble
Bill Ribble, Mayor